

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONXGARFIELD VAUGHAN,

X

INDEX NO.:

Plaintiff(s),

-against-

THE CITY OF NEW YORK and THE
NEW YORK CITY POLICE DEPARTMENT,
WILLIAM J. BRATTON, Commissioner of Police,
As Successor in Interest to RAYMOND KELLY,
Former Police Commissioner of the
NEW YORK CITY POLICE DEPARTMENT,
P.O. CORINNE MACLENNAN, individually,
and as Police Officer, and JOHN DOE "1" individually,
and as Police Supervisory Personnel,

SUMMONS

Defendant(s).

X

Plaintiff designates: Bronx County as the place of trial

Basis of the venue is: Plaintiff residence

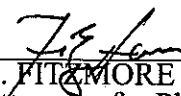
Plaintiff reside at: 3915 Amundson Avenue, Bronx, New York 10466

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff attorneys within **20 days** after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 20, 2015

Yours, etc.


H. PITTMORE HARRIS, P.C.
Attorneys for Plaintiff
160 Broadway, Suite 501
New York, New York 10038
(212) 406-0998Defendants' Address: THE NEW YORK CITY POLICE DEPARTMENT
William J. Bratton, Commissioner
One Police Plaza, New York, NY 10038CORPORATION COUNSEL
NEW YORK CITY LAW DEPARTMENT
100 Church Street, New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

GARFIELD VAUGHAN,

Plaintiff(s),

-against-

THE CITY OF NEW YORK and THE
NEW YORK CITY POLICE DEPARTMENT,
WILLIAM J. BRATTON, Commissioner of Police,
As Successor in Interest to RAYMOND KELLY,
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and as Police Supervisory Personnel,
Defendant(s).

INDEX NO.:

COMPLAINT

Plaintiff, by his attorneys H. FITZMORE HARRIS, P.C, alleges the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times relevant herein, plaintiff GARFIELD VAUGHAN was and still is a resident of the State of New York, County of Bronx.
2. This action falls within one or more of the exemptions set forth in CPLR Section 1602.
3. Defendant THE CITY OF NEW YORK was and is a domestic municipal corporation existing by virtue of and under the laws of the State of New York.
4. Defendant THE NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and is a department of the City of New York, existing and operating by virtue of the laws of the State of New York and City of New York.
5. At the time of the accrual of this action, defendant RAYMOND KELLY was the duly appointed Commissioner of THE NEW YORK CITY POLICE DEPARTMENT and in that capacity was responsible for the proper hiring, training and supervision of the employees of the NYPD, for drafting, designing, adopting and implementing rules, regulations, practices procedures and policies of the NYPD including those regarding investigations, detainments and arrests, and for ensuring that proper measures are established and adhered to by the employees and agents of the NYPD for investigations, detainments and arrests.

6. On January 2, 2014, WILLIAM J. BRATTON was appointed the New York City Police Commissioner and thereby succeeded RAYMOND KELLY as, and still is Commissioner of the New York City Police Department.

7. At all times relevant herein, defendant CORINNE MACLENNAN was a police officer employed by the NYPD and who, at all times relevant herein, was acting within the scope and in furtherance of her/his employment.

8. At all times relevant herein, defendant JOHN DOE "1" was supervisory police personnel employed by the NYPD whose identity is presently unknown who, at all times relevant herein were acting within the scope of his/her employment, and were responsible for the hiring, training and supervision of New York City Police Officers and/or the promulgation and/or monitoring and enforcement of the rules, regulations, practices, procedures and policies of the NYPD and the City of New York.

9. At all times herein, defendants were acting under color of state law.

10. On May 1, 2012, plaintiff GARFIELD VAUGHAN was lawfully and peacefully present inside of 4111 Laconia Avenue County of Bronx, State of New York.

11. At the aforementioned time and place, defendants police officers, including defendants CORINNE MACLENNAN and JOHN DOE "1", seized plaintiff.

12. At the aforementioned time and place, defendant police officers, including defendants CORINNE MACLENNAN and JOHN DOE "1", unreasonably searched the plaintiff.

13. At the aforementioned time and place, one or more defendants CORINNE MACLENNAN and JOHN DOE "1", arrested plaintiff.

14. At the aforementioned time and place, CORINNE MACLENNAN and JOHN DOE "1" arrested plaintiff.

15. At the aforementioned time and place, defendants did not have legal authority to seize, search or detain plaintiff.

16. The acts described herein were not pursuant to a warrant for arrest of plaintiff or a warrant to search plaintiff.

17. At the aforementioned time and place, defendants police officers without any warrant or authority of law, wrongfully, unlawfully and against plaintiff's will, without probable cause and

without informing plaintiff of the basis of charges against them, and without informing them of their "Miranda Rights," forcibly seized and searched plaintiff.

18. At the time of the unreasonable search, defendants knew there was no lawful basis to arrest plaintiff GARFIELD VAUGHAN.

19. At the aforementioned time and place, defendants police officers without any warrant or authority of law, wrongfully, unlawfully and against plaintiff's will, without probable cause and without informing plaintiff of the basis of charges against him, and without informing him of his "Miranda Rights," forcibly seized and arrested plaintiff.

20. At the time of his arrest, defendants knew there was no lawful basis to arrest plaintiff GARFIELD VAUGHAN, nor to search the plaintiff.

21. At no time did the plaintiff GARFIELD VAUGHAN consent to his unlawful arrest or detention.

22. At no time did the plaintiff GARFIELD VAUGHAN consent to the unlawful search of his person.

23. For some time thereafter, defendants, without probable cause, wrongfully, maliciously and forcibly confined plaintiff GARFIELD VAUGHAN against his will.

24. During the above stated period both at the time of arrest and repeatedly thereafter, defendants knew of or learned of the unlawfulness, falsity and lack of probable cause for plaintiff's arrest and imprisonment, and of the unreasonable search; and willfully, wrongfully and maliciously refused to release plaintiff GARFIELD VAUGHAN from their unlawful confinement with careless, reckless, wanton and malicious disregard for the rights of plaintiff.

25. Defendants confined plaintiff GARFIELD VAUGHAN unlawfully at the 47th Precinct, Central Booking and a detention cell at the Bronx Criminal Court for a period in excess of 24 hours on March 1, 2012, during which time plaintiff was not enabled nor permitted to move about a suitably sized area, but was required to remain in a sitting position in a confined and cramped space and/or seated on a hard surface, thereby causing physical injury to plaintiff.

26. The charges which were filed against plaintiff GARFIELD VAUGHAN were later dismissed.

27. Defendants Commissioner WILLIAM J. BRATTON, and JOHN DOE "1" willfully,

wantonly, recklessly, carelessly, negligently and with gross negligence, hired, trained and supervised its police officers regarding criminal investigations, detention and arrests, causing the wrongful and malicious acts alleged herein.

28. Defendants Commissioner WILLIAM J. BRATTON and JOHN DOE "1" willfully, wantonly, recklessly, carelessly, negligently and with gross negligence, failed to maintain and enforce rules, regulations, minimum standards and/or policies regarding criminal investigations, detention and arrests, causing the wrongful and malicious acts alleged herein.

29. Defendants Commissioner WILLIAM J. BRATTON and JOHN DOE "1" knowingly, willfully, wantonly, recklessly, negligently and carelessly failed to maintain and enforce proper criminal investigation and arrest procedures, causing the wrongful and malicious acts alleged herein.

30. Defendants Commissioner WILLIAM J. BRATTON and JOHN DOE "1" willfully, wantonly, recklessly, carelessly and negligently caused, created and maintained rules, regulations, standards and/or policies condoning, encouraging and causing the wrongful and malicious acts alleged herein.

31. By reason of the foregoing, defendants violated plaintiff GARFIELD VAUGHAN'S right to be secure in his person against unreasonable searches and seizures, and consequently, plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitutions for which defendants are liable pursuant to Title 42 U.S.C. 1983.

32. By reason of the foregoing, defendants discriminated against plaintiff GARFIELD VAUGHAN on basis of his national origin; plaintiff was injured in his rights under the Fourteenth Amendment to the United States Constitution guaranteeing Equal Protection under the law for which defendants are liable pursuant to Title 42 U.S.C. 1983.

33. By reason of the foregoing, plaintiff suffered both physical and mental pain and injury, and plaintiff was injured in his character and reputation. The effects of all of the above stated continue to date, and, upon information and belief, will continue into the future.

34. By reason of the foregoing, the plaintiff demands judgement in an amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A SECOND CAUSE OF ACTION

35. Plaintiff GARFIELD VAUGHAN repeats and reallege each and every allegation set

forth above in paragraphs "1" through "34" as if set forth fully herein.

36. Plaintiff have complied with the provisions of New York State Municipal Law § 50(i) with respect to plaintiff's state law claims; within the time prescribed by law, a sworn Notice of Claim stating among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller of THE CITY OF NEW YORK and that thereafter said defendant refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

37. The acts and omissions as alleged herein constitute false imprisonment and violation of the statutes and common law of the State of New York.

38. By reason of the foregoing, plaintiff GARFIELD VAUGHAN suffered both physical and mental pain and injury, and plaintiff were injured in their character and reputation. The effects of all of the above stated continue to date, and, upon information and belief, will continue into the future, for which plaintiff will be forced to seek medical and other professional care to cure his injuries.

39. By reason of the foregoing, plaintiff demands judgment in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A THIRD CAUSE OF ACTION

40. Plaintiff GARFIELD VAUGHAN repeat and reallege each and every allegation set forth above in paragraphs "1" through "39" as if set forth fully herein.

41. That on March 1, 2012, while the plaintiff was lawfully and properly present at the aforementioned location, defendants by their servants, agents, and employees, acting as agents on behalf of defendants and within the scope of their employment, forcibly entered the location, and without provocation and with great force and violence, violently seized, assaulted and laid hold of the plaintiff, GARFIELD VAUGHAN, including but not limited to intentionally, forcefully and fiercely striking and shoving plaintiff causing plaintiff to suffer physical and emotional injuries.

42. That the defendants, their agents, servants and employees, acting as agents on behalf of defendants and within the scope of their employment, intentionally, willfully, and maliciously assaulted and battered plaintiff GARFIELD VAUGHAN, in that they had the real and apparent

ability to cause imminent harmful and/or offensive bodily contact and intentional did a violent and/or menacing act which threatened such contact with the plaintiff, and the acts caused apprehension of such contact with the plaintiff, and defendants, in a hostile and/or offensive manner touched and struck the plaintiff, without their consent and with the intention of causing harmful and/or offensive bodily contact with the plaintiff and caused such a batter in and about their heads, neck, body and limbs.

43. By reason of the foregoing intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority, and without probable cause, or reasonable cause, the plaintiff suffered great bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, aggravating and complicating and aggravating plaintiff pre-existing injuries, and among other things, causing plaintiff to suffer conscious pain and suffering, and that they were otherwise damaged, thus, plaintiff demands judgement in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A FOURTH CAUSE OF ACTION

44. Plaintiff GARFIELD VAUGHAN repeats and realleges each and every allegation set forth above in paragraphs "1" through "43" with the same force and effect as if more fully and at length set forth herein.

45. That on or about the 1st day of March, 2012, at or about approximately 1:36 p.m. of that day, while the plaintiff was lawfully and properly on the sidewalk at or near premises known and designated as 4111 Laconia Avenue, in the County of Bronx, City and State of New York, and at subsequent times thereafter, including the 47th Precinct, Central Booking and a detention cell at the Criminal Courts Building located at 265 East 161st Street, Bronx, New York, the defendants, their agents, servants and employees maliciously prosecuted and detained plaintiff, GARFIELD VAUGHAN, without any just right or grounds therefor.

46. That the plaintiff was and is wholly innocent, and was forced by the defendants to submit to court proceedings.

47. That on or about the 2nd day of March 2012, before the Hon. William McGuire, a Judge of the Criminal Court of the City of New York, in Part AR2, the defendants, their agents, servants and employees falsely and maliciously and without probable cause or provocation charged the

plaintiff with crimes under the New York Penal Law §240.30 and New York Penal Law §215.50.

48. That the defendants, their agents, servants and employees acting in the performance of their employment and within the scope of their authority, testified falsely and withheld vital information before a Judge of the Criminal Court of the City of New York, in the County of Bronx.

49. That upon examination, the said charges were falsely and maliciously made. That the Judge of the Criminal Court of the City of New York, in Criminal Term, Part AP4, dismissed all charges against the plaintiff on or about the 31st day of , January, 2014.

50. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor. That the commencement and continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff.

51. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

52. That by reason of the aforesaid, the plaintiff has been damaged in the sum of ONE MILLION (\$1,000,000.00) DOLLARS.

WHEREFORE, plaintiff GARFIELD VAUGHAN demands judgement in the amount of ONE MILLION (\$1,000,000.00) DOLLARS, on the first cause of action; ONE MILLION (\$1,000,000.00) DOLLARS, on the second cause of action; ONE MILLION (\$1,000,000.00) DOLLARS, on the third cause of action; and judgement in the amount of ONE MILLION (\$1,000,000.00) DOLLARS, on the fourth cause of action.

Dated: New York, New York
April 20, 2015

Yours, etc.


H. FITZMORE HARRIS, P.C.
Attorneys for Plaintiff
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